

25CHCV00737 25CHCV00737

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25CHCV00737 Hearing Date: July 7, 2026 Dept: F51

LOS ANGELES SUPERIOR
COURT

NORTH VALLEY DISTRICT

DEPARTMENT F-51

JULY
6, 2026

MOTION FOR LEAVE TO FILE
CROSS-COMPLAINT

Los
Angeles Superior Court Case # 25CHCV00737

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Motion
Filed: 4/22/26
Jury Trial: 9/27/27

MOVING

PARTY: Defendants

The Goodyear Tire & Rubber Company; and Maurilio Garcolazo (collectively, "Defendants")

RESPONDING

PARTY: Plaintiffs

Denise Fernando Perez; and Jesus Sandoval Ponce

(collectively,
"Plaintiffs")

NOTICE:

OK

RELIEF

REQUESTED: An order granting Defendants
leave to file a cross-complaint against Plaintiff Jesus Sandoval Ponce.

TENTATIVE

RULING: The unopposed
motion is granted. Defendants to separately file and serve their proposed
Cross-Complaint within 20 days of this order.

BACKGROUND

This is a personal injury action in which Plaintiffs allege
that on 3/5/23, they "were traveling near Glenoaks Blvd. and Beaver
Street, in the city of Los Angeles, California 91342, when a vehicle owned by
Defendant The Goodyear Tire & Rubber Company, and driven by Defendant
Maurilio Garcolazo, collided with Plaintiffs' vehicle, resulting in substantial
injuries and damages to Plaintiffs." (Compl. p. 4.)

On
2/28/25, Plaintiffs filed their complaint, alleging against Defendants the
following causes of action: (1) General Negligence; and (2) Motor Vehicle
Negligence. On 12/1/25, Defendants filed their answer.

On 4/22/26, Defendants filed the instant motion. No opposition
has been filed to date.

On 6/29/26, Defendants filed a notice of non-opposition to the instant motion.

ANALYSIS

"A party
shall file a cross-complaint against any of the parties who filed the complaint
or cross-complaint against him or her before or at the same time as the answer

to the complaint or cross-complaint. ... A party shall obtain leave of court to file any cross-complaint..." (Code Civ. Proc. § 428.10.) If the proposed cross-complaint is permissive, leave of court may be granted "in the interest of justice" at any time during the course of the action. (Code Civ. Proc. § 428.50, subd. (c).) On the other hand, if the proposed cross-complaint is compulsory, then leave must be granted so long as the defendant is acting in good faith. (Code Civ. Proc. § 426.50.)

Here, while

Defendants do not specify whether their proposed cross-complaint is permissive or compulsory, they contend that leave to file its cross-complaint should be granted under statutes for either form. (Defs.' Mot. 7:12–13.) "In order to ensure that all claims arising from the subject incident are resolved in a single proceeding and that the parties' respective rights and liabilities are fully adjudicated, Defendants now seek leave of Court to file a Cross-Complaint against Plaintiff Jesus Sandoval Ponce." (Id. at 5:10–13.) Defendants argue that "despite the central role of Plaintiff Ponce's conduct in the occurrence of the accident and the apportionment of fault, Plaintiffs' operative pleading does not include claims necessary to fully and fairly adjudicate all rights and liabilities arising from the incident. Absent a cross-complaint, Defendants are deprived of the ability to obtain complete relief, and the Court is left without a procedural vehicle to resolve all related claims in a single action." (Id. at 3:15–20.)

Defendants'

proposed cross-complaint alleges against Plaintiff Ponce the following causes of action: (1) Comparative Fault; (2) Declaratory Relief; (3) Equitable Indemnity; and (4) Implied Indemnity. (Ex. 4 to Decl. of Michael Schonbuch.) The Court notes that no opposition has been filed against the instant motion. Accordingly, the Court finds that Defendants are acting in good faith, and therefore, in the interest of justice, may file their proposed cross-complaint against Ponce.

CONCLUSION

The unopposed motion is granted. Defendants to separately file and serve their proposed Cross-Complaint within 20 days of this order.